

EXAMINATION SCHEME

B.A. L.L.B. (Hons.), Semester- III

Subject wise marks allotted and corresponding credits (w.e.f-2019-20)

S. No.	Subject Code	Name of subject	Marks Allotted								Total Marks	Credit / Contact Hours per Week			Total Credits
			Theory		Internal Assignment		Practical / Viva-Voice		L	T		P			
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks							
1	BAL-301	Political Science - III (Major)	80	32	20	8	0	0	0	100	5	1	0	6	
2	BAL-302	Legal Language / Legal Writing Including General English	80	32	20	8	0	0	0	100	5	1	0	6	
3	BAL-303	Economics - III (Minor)	80	32	20	8	0	0	0	100	5	1	0	6	
4	BAL-304 (A)	Family Law - I (Hindu Law)	80	32	20	8	0	0	0	100	5	1	0	6	
5	BAL-305 (C)	Human Rights Law & Practice	80	32	20	8	0	0	0	100	5	1	0	6	
6	BAL-306 (A)	Constitution Law - II	80	32	20	8	0	0	0	100	5	1	0	6	
TOTAL			480	192	120	48	0	0	0	600	30	6	0	36	

L: Lecture T: Tutorial P: Practical

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B.A. L.L.B. (HONS.) PART-II SEMESTER - III
PAPER – I POLITICAL SCIENCE- III (MAJOR)

UNIT - I Political Thinkers : From Plato to Hobbes

1. Plato
2. Aristotle
3. Bentham
4. Cicero
5. Niccolo Machiavelli
6. Jean Bodin
7. Huge Grotius
8. Thomas Hobbes

UNIT - II Political Thinkers : Locke to Marx

1. John Locke
2. Rousseau
3. Montesquieu
4. Bentham
5. Edmund Burke
6. John Stuart Mill
7. John Austin
8. Karl Marx

UNIT - III Ideologies

1. Liberalism
2. Individualism
3. Socialism
4. Marxism
5. Capitalism
6. Constitutionalism
7. Pluralism

UNIT - IV Indian Political thoughts : Classical Era

1. Hindu conception of State.
2. Islamic conception of State.
3. Christian Conception of State

UNIT - V Indian Political thoughts : Recent Era

1. Gandhism-Sarvodaya.
2. Kautilya's-Arth Shastra.
3. 19th Century- Political ideals.

SELECT BIBLIOGRAPHY:-

1. Urmila Sharma and S.K. Sharma Indian political thought, Atlantic Publishers and distributors, New Delhi.
2. N. Jaya Palan Comprehensive History of Political thought, Atlantic publishers, New Delhi.
3. Ebinstein, Great Political thinkers.

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B.A. L.L.B. (HONS.) PART-II SEMESTER - III
PAPER – II LEGAL LANGUAGE/LEGAL WRITING INCLUDING GENERAL ENGLISH

UNIT – I Introduction to Legal Language

1. Characteristics of Legal Language
2. History of Legal Language
3. Legal Language in India
4. English as a medium of communication for legal transaction in India

Introduction to oral communication skills

1. Passive and active listening - questioning - non-verbal communication
2. Listening comprehension
3. Passive and active listening - questioning - non-verbal communication

UNIT –II Vocabulary

1. Consulting a dictionary - consulting a thesaurus
2. Synonyms and antonyms - related words - regular vocabulary exercises

Phonetics Theory and Practice

1. The phonetic script
2. Consulting a dictionary for pronunciation - exercise with audio aids
3. Reading exercises - stress, accent and intonation suitable for Indian speaker with emphasis on clarity of speech and felicity of expression
4. Reading comprehension principles and practice

UNIT –III Legal terminology

1. Terms used in civil law and criminal law
2. Latin words and expressions - law register

UNIT –IV Fundamental principles of Report writing and Legal Writing

1. Concision - clarity - cogency - simplicity of structure
2. Attention and awareness of practical legal import of sentences
3. Brief writing and drafting of report writing viz-Road accident, convocation held in University, Decision of Court (Civil and Criminal), Minutes of meeting, Complaint to police regarding offence

UNIT –V General Legal writings in English

1. Writing of case comments
 - (i) Ashby v/s White and others 2 Id Rayon 938
 - (ii) Donoughe v/s Stevenson, House of Lords (1932) Ac 562 (1932). All Er Rep.-1
 - (iii) Keshvananda Bharti v/s State of Kerala (AIR 1973 SC 1461)
 - (iv) Mohiri Biwi v/s Dharmdas Ghosh Privy Council (1903) 30 IA114.
 - (v) Balfour v/s Balfour (1919) 2 KB 57.
 - (vi) Menka Gandhi v/s Union of India AIR 1978 SC 597.
 - (vii) Subhagwanti v/s Delhi Municipal Corporation AIR 1966 SC 1750
2. Essay writing on topics of legal interest
3. General guidelines relating to legal writing

SELECT BIBLIOGRAPHY

1. Abbet Parry, Seven Lamps of Advocacy
2. Mogha's, Conveyancing
3. Mogha's, Forms and Precedents
4. Mogha's, Pleadings
5. Law and Language
6. Bhatnagar, R.P. & R. Bhargava, Law and Language, New Delhi: Macmillan,
7. Brown, Gordon W. Legal Terminology, New Jersey: Prentice Hall, 1990
8. Cochrane, Michael, Legal English, Paris Cujas, 1979
9. Cross, fan et al. Skills for Lawyers, Jordan Publishing Co., Bristol.
10. Cutts, Martin, The Plain English Guide, Oxford University Press, 1995
11. Garner, Bryan, A Dictionary of Modern Legal Usage, New York: OUP, 1987
12. Gibbons, John, (ed.) Language and the Law, Longman, 1996 London.
13. Gibbons, John, (ed.) "Language and the Law", Annual Review of Applied 14. Linguistics (1999) 19, 156-173.
15. Kelkar, Ashok R. "Communication and Style in Legal Language", Indian Bar Review Vol.10 (3) 1993.
16. Lord Denning, "Command of Language", The Discipline of the Law, New Delhi: Aditya 1993.
17. Lord Denning, "Plain English", The Closing Chapter, New Delhi: Aditya Books, 1993.
18. Melinkoff, David, The Language of the Law, Boston: Little Brown & Co., 1963.
19. Molynenux, Hael. Legal Problems, Macmillan, London
20. Herbert Brown, A Selection of Legal Maxims (Reprint 1998) Sweet and Maxwell.
21. M.C.Setalvad, My Life, Law Other things, (2000), Universal, Delhi.
22. Olivercrona, K. 'Legal Language and Reality" In M.D.A. Freeman, Introduction to Jurisprudence
23. Riley, Alison, English for Law, London: Macmillan, 1991.
24. Williams, Glanville, "Language and the Law" in Freeman, pp.1350-53.
25. Thomson, A.J. & A.V. Martinet, A Practical English Grammar, Oxford: OUP
26. N.D.7 J.B. Heaton, Longman Dictionary of Common Errors
27. Williams, Glanville, Language and the Law, in Freeman. PP.1350-53.
28. Williams, Glanville, Learning The Law, (2000), Universal, New Delhi:
29. Black& Law Dictionary, (2000). Universal, New Delhi.
30. Broom's Legal Magazines (2000), Universal, New Delhi.
31. James and Stebbings, A Dictionary of Legal Quotations(1997) Universal, New Delhi.
32. Latin For Lawyers, (1997), Sweet and Maxwell, Universal, New Delhi.
33. Trayner's Latin Magazines, (1997) University, New Delhi.

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B.A. L.L.B. (HONS.) PART-II SEMESTER - III
PAPER – III ECONOMICS – III (MINOR)

UNIT – I Concepts and Rationale of Planning

1. Planning in India, main objects of different five year plans, Achievements of planning Progress and Problems
2. New economic reforms globalization and its impact on Indian economy
3. Regional disparity and government policy.

UNIT – II Economic Development

1. Natural Resources and Economic Development
2. Economic backwardness
3. determinants of economic development
4. Industrial Policy and economic development
5. Human capital and Human Resource Development.

UNIT – III Public and Private Sector

1. Population policy of India
2. Main industries and Industrial Policy of India
3. Public Sector and Private sector in India's mixed economy
4. Performance of Public sector
5. Privatisation and its justification. Reserve Bank and Monetary Policy.

UNIT – IV Foreign Aid

1. Parallel economy in India – Black money and its impact
2. Concentration of economic power and large industrial houses
3. Democracy and Political Corruption
4. Need for foreign Aid and Government Policy towards Foreign Debt and Investment. Impact of Foreign Aid.

UNIT – V Economic development and its impact

1. Agriculture and Indian Economy
2. Economic history during British rule
3. Permanent Settlement in Bengal – Mahalwari and Ryotwari system
4. Rural indebtedness and co-operative credit
5. Decline of cottage and small industries and growth of modern industries
6. Recession and its impact
7. Development of Insurance in public and private sector
8. Centre state financial relations in India

SELECT BIBLIOGRAPHY

1. Rudra dutt K.P.M. Sundaram, Indian Economy, S. Chand New Delhi.
2. A.N. Agrawal, Indian Economy Problems of Development and Planning Vishwa Prakashan.
3. Uma Kapila, Indian Economy, since independence, Academic foundation, Delhi

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B.A. L.L.B. (HONS.) PART-II SEMESTER - III PAPER – IV FAMILY LAW - I (HINDU LAW)

UNIT-I Introduction

1. Nature of Hindu Law
2. Hinduism, Origin and Development, Definitions.
3. Schools and Sources.

UNIT-II Marriage and Divorce

1. Marriage
2. Kinds, nullity of marriage.
3. Hindu marriage Act, 1955.
4. Special marriage Act, 1954.
5. Divorce
6. Judicial separation, Restitution of conjugal rights.
7. Grounds for matrimonial remedies.

UNIT-III Hindu Undivided Family

1. Joint family (Hindu undivided family)
2. Coparcenaries, property under *Mitakshara* and *Dayabhag*.
3. Partition and Re-union, women estate, stridhan.

UNIT-IV Gift, Wills and Adoption

1. Gifts, wills.
2. Hindu adoption and maintenance Act, 1956.
3. Hindu Minority and Guardian Ship Act, 1956.

UNIT-V Inheritance

1. General rules of Succession
2. Disqualification relating to Succession
3. Hindu Succession Act, 1956
4. Religious Endowment.

SELECTED BIBLIOGRAPHY:-

1. Paras Diwan, Law of Intestate and Testamentary Succession (1998), Universal.
2. Basu, N.D. Law of Succession (2000), Universal.
3. Kusum, Marriage and Divorce Law Manual (2000), Universal.
4. Manchanda, S.C. Law and Practice of Divorce in India (2000), Universal.
5. P.V. Kane, History of Dharmasastra Vol. 2 pt. 1 at 624-632 (1974).
6. Kuppaswami (ed.) Mayne's Hindu Law and Usage Ch. 4 (1986).
7. B. Sivaramaya, Inequalities and the law, (1985).
8. K.C. Daiya, "Population control through family planning in India." Indian Journal of Legal Studies, 85 (1979).
9. J.D.M. Derrett, Hindu Law : Past and Present.
10. B.M. Gandhi – Hindu Law

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B.A. L.L.B. (HONS.) PART-II SEMESTER - III
PAPER – V HUMAN RIGHTS LAW & PRACTICE

UNIT – I Concept

1. Historical Development and concept of Human Right
2. Human Right in India ancient, medieval and modern concept of rights
3. Human Right in Western tradition
4. Concept of natural law and natural rights
5. Human Right in legal tradition: International Law and National Law
6. UN and Human Rights
7. Universal Declaration of Human Rights (1980) - individual and group rights
8. Covenant on political and Civil Rights (1966)

UNIT - II Conventions

1. Convention on economic social and cultural Rights 1966
2. Convention on the elimination of all forms of discrimination against women
3. Convention on the rights of the child

UNIT – III Impact and Implementation

1. Impact and Implementation of International Human Rights Norms in India
2. Human rights norms reflected in fundamental rights in the constitution
3. Directive principles: legislative and administrative implementation of international human rights norms through judicial process

UNIT –IV Disadvantaged Groups

1. Human Rights and disadvantaged Groups – women, prisoners, child, Dalits, Aid victims, and Minorities
2. Enforcement of Human Right in India

UNIT- V Remedies

1. Role of courts: the Supreme Court, High Courts and other courts
2. Statutory commissions- human rights, women, minority and backward class

SELECT BIBLIOGRAPHY:-

1. S.K. Awasthi and R.P. Kataria. Law Relating to Human Rights, Orient New Delhi.
2. Human Rights Watch women's Rights Project, The Human Rights Watch Global Report on women's Human Rights (2000) Oxford.
3. Ermacora, Nowak and Tretter. International Human Rights (1993), Sweet & Maxwell.
4. Wallace, International Human Rights: Text & Materials (1996), Sweet & Maxwell.
5. Human Rights and Global Diversify (2001), Frank Cass, London.
6. Nirmal. B.C., The Right to Self determination in International (1995). Deep & Deep.
7. P.R. Gandhi. International Human Rights documents (1999) Universal, Delhi.

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B.A. L.L.B. (HONS.) PART-II SEMESTER - III PAPER -VI CONSTITUTION - II

UNIT-I Administration of Frinz Area

1. Administration of Union Territories
2. The Panchayat and Municipalities
3. The schedule and tribal areas

UNIT-II Legislative and Administrative Relations

1. Relation between the Union and the State
2. Distribution of legislative power
3. Administrative relations
4. Disputes relating to water.
5. Freedom of trade, commerce and intercourse within territory of India

UNIT- III Finance and Service

1. Financial provisions: property, contracts, rights, liabilities obligation and Suit
2. Public service commissions, service under the Union and the States

UNIT IV Tribunals and Special other matters

1. Tribunals,
2. Elections,
3. Special provisions-relating to certain classes,
4. Official language

UNIT-V Emergency provisions and Amendment

1. Emergency provisions: Proclamation of emergency, effect of emergency, financial emergency
2. Amendment in the Constitutions

SELECT BIBLIOGRAPHY:

1. D.D. Basu, Shorter Constitution of India, (1996), Prentice Hall of India, Delhi.
2. D.D. Basu- Introduction to Constitution of India. 2002 (Reprint) Wadhwa.
3. H.M. Seervai, Constitution of India, Vol. 1-3 (1992), Tripathi, Bombay
4. M.P. Singh (ed.), V.N. Shukla, Constitutional Law of India (2000), Oxford
5. Indian Constitution, V.N. Shukla.
6. Constitution of India, V.P. Mahajan